



CHAPTER cxliv.

An Act to empower the lord mayor aldermen and citizens of the city of Leeds to provide omnibuses worked by electricity and to construct a street improvement and for other purposes. A.D. 1910.

[28th November 1910.]

WHEREAS the lord mayor aldermen and citizens of the city of Leeds (in this Act called “the Corporation”) own and work tramways within and beyond the said city and it is expedient to authorise them to provide and work omnibuses moved by electrical power transmitted thereto from some external source and to confer upon the Corporation the other powers in relation thereto contained in this Act:

And whereas it is expedient to empower the Corporation to execute the street improvement referred to in this Act:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

	£
For the provision of trolley vehicles - -	5,000
For the provision of electrical equipment and the construction of other works necessary for working trolley vehicles - - -	9,000
For the construction of the street improvement authorised by this Act - - -	300
[Price 1s.] A	1

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—

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the eighth day of December nineteen hundred and nine after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the Yorkshire Post a local newspaper circulating in the city such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the city fund and city rate:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fifth day of January nineteen hundred and ten being not less than fourteen days after the deposit of the Bill in Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

And whereas plans and sections showing the lines and levels of the work authorised by this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the west riding of the county of York and are hereinafter respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

A.D. 1910.

PRELIMINARY.

1. This Act may be cited as the Leeds Corporation Act 1910. Short title.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are hereby incorporated with this Act:—

Incorporation of Acts.

(1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845):

(2) The following provisions of the Tramways Act 1870 (namely):—

Section 3 Interpretation of terms;

Part II. Relating to the construction of tramways (except sections 25 28 and 29);

Section 45 Tolls &c.;

Section 46 Byelaws by local authority Promoters may make certain regulations;

Section 47 Penalties may be imposed in byelaws;

Section 49 Penalty for obstruction of promoters in laying out tramway;

Section 50 Penalties for wilful injury or obstruction to tramways &c.;

Section 51 Penalty on passengers practising frauds on the promoters;

Section 52 Transient offenders;

Section 53 Penalty for bringing dangerous goods on the tramway;

Section 55 Promoters or lessees to be responsible for all damages;

Section 56 Recovery of tolls penalties &c.;

Section 61 Power for local or police authorities to regulate traffic in roads:

Provided that the provisions of the Tramways Act 1870 incorporated with this Act shall be read and have effect as if the works to be constructed in the streets for moving trolley vehicles by electrical power were tramways and as if trolley vehicles were carriages used on tramways.

A.D. 1910.
Interpreta-
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

The expressions “the Corporation” “the city” “the council” “the city fund” “the city rate” and “the consolidated fund” have the meanings assigned to them respectively by section 4 (Interpretation of terms) of the Act of 1908; and

“The General Powers Act 1901” “the Consolidation Act 1905” and “the Act of 1908” mean respectively the Leeds Corporation (General Powers) Act 1901 the Leeds Corporation (Consolidation) Act 1905 and the Leeds Corporation Act 1908.

PART II.

TROLLEY VEHICLES.

Power to
provide and
work omni-
buses moved
by electri-
city.

4.—(1) The Corporation may provide maintain and equip but shall not manufacture mechanically propelled vehicles adapted for use upon roads and moved by electrical power transmitted thereto from some external source (in this Act called “trolley vehicles”) and may use the same upon the route in the city hereinafter mentioned and may place erect and maintain in and along the streets and roads forming such route cables wires posts poles and any other necessary or convenient apparatus and equipment for the purpose of working trolley vehicles.

(2) The route hereinbefore referred to commences in the City Square passes along Wellington Street Aire Street and Whitehall Road and terminates at the boundary of the city at Drighlington.

Vehicles not
to be deemed
light loco-
motives or
motor cars.

5. Trolley vehicles shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of the Motor Car Act 1903 and neither the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to trolley vehicles.

6.—(1) Trolley vehicles and the electrical equipment thereof shall be of such form construction and dimensions as the Board of Trade may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Board of Trade and no such vehicle (including the weight of its load) shall exceed a weight of five tons.

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Approval of
vehicles by
Board of
Trade.

(2) No post or other apparatus shall be erected on the carriageway except with the consent of the Board of Trade.

7.—(1) Trolley vehicles may be used for the carriage of passengers and of parcels not exceeding fifty-six pounds in weight but the Corporation shall not be bound to carry parcels other than personal luggage carried by passengers and not exceeding twenty-eight pounds in weight.

Fares rates
and charges.

(2) The Corporation may demand and take in respect of the carriage of passengers upon the trolley vehicles fares rates and charges not exceeding the fares rates and charges which the Corporation could have charged under section 81 of the Consolidation Act 1905 if the trolley vehicles had been carriages upon the Corporation tramways.

(3) The Corporation may demand and take in respect of the carriage of parcels upon the trolley vehicles rates or charges not exceeding the rates and charges which the Corporation could have charged for the carriage of parcels under section 86 of the Consolidation Act 1905 if the trolley vehicles had been carriages upon the Corporation tramways.

8.—(1) If at any time hereafter the Corporation desire to use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the streets or roads hereinbefore specified) they may make application to the Board of Trade and the Board of Trade shall be and are hereby empowered to make a Provisional Order authorising the use of trolley vehicles upon any route or routes within the city to which such application relates.

Board of
Trade may
authorise
new routes.

(2) No such application shall be entertained by the Board of Trade unless the Corporation shall—

- (a) Have published once in each of two successive weeks in the months of October or November notice of their intention to make such application in some newspaper or newspapers circulating in the city;

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(b) Have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the several streets or roads in which such application relates a notice of their intention to make such application and each such notice shall state the time and method for bringing before the Board of Trade any objections to the grant of such application.

(3) The Board of Trade may and they are hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Board of Trade shall consider any such application and may if they think fit direct an inquiry to be held in the city in relation thereto or may otherwise inquire as to the propriety of proceeding upon such application and they shall consider any objection to such application that may be lodged with them in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) In any case where it shall appear to the Board of Trade expedient and proper that the application be granted they may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Part of this Act shall not have any operation.

(6) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

The Act of Parliament confirming a Provisional Order under this Act shall be deemed a public general Act.

(7) The making of a Provisional Order under this section shall be *prima facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Provisional Order have been complied with.

(8) Any expenses incurred by the Board of Trade in connection with the preparation and making of any such Provisional Order and any expenses incurred by the Board of Trade in connection with any inquiry under this section shall be paid by the Corporation. A.D. 1910.

(9) Provided that any Provisional Order obtained by the Corporation under the Tramways Act 1870 authorising the construction of tramways in the city may authorise the Corporation to use trolley vehicles upon all or any of the streets or roads along which such tramways are authorised to be constructed in lieu of and pending the construction thereof.

9.—(1) The following provisions of the Consolidation Act 1905 shall extend and apply to and for the purposes of this Part of this Act as if those provisions were with all necessary modifications re-enacted in this Part of this Act. Provided that in the application of such provisions the same shall be read and have effect as if trolley vehicles were carriages used on the Corporation tramways. Application
of provisions
of Consoli-
dation Act
1905.

The provisions hereinbefore referred to are—

Section 60 Inspection by Board of Trade;

Section 67 Corporation may use electrical apparatus and generate electricity;

Section 68 Power to purchase lands by agreement;

Section 69 Provisions as to motive power;

Section 70 Special provisions as to use of electrical power;

Section 71 For protection of Postmaster-General;

Section 72 For protection of Post Office telegraph lines;

Section 74 Mechanical power works;

Section 75 Attachment of brackets to buildings;

Section 76 Byelaws;

Section 78 Amendment of Tramways Act 1870 as to bye-laws by local authority;

Section 79 Regulations;

Section 81 Rates for passengers;

Section 82 Prohibiting raising of fares on Sundays and holidays;

A.D. 1910.	Section 83	Passengers' luggage ;
	Section 84	As to running through cars and charges for same ;
	Section 85	Cheap fares for labouring classes ;
	Section 87	Payment of rates and charges ;
	Section 88	Periodical revision of rates and charges ;
	Section 89	Corporation may appoint stopping and starting places ;
	Section 90	Tramway waiting rooms ;
	Section 93	Lost property ;
	Section 94	Penalty for malicious damage ;
	Section 97	Expenses and receipts under Part IV. of Act ;
	Section 98	Orders and byelaws to be signed &c. ;
	Section 100	Provisions as to arbitration ;
		The Fourth Schedule ; and
		The Fifth Schedule :

Provided that trolley vehicles shall not be used for the conveyance of goods and mineral traffic except such traffic as arises in and is destined for places within the city and except passengers' luggage conveyed with the passenger.

(2) The undertaking authorised by this Part of this Act shall be deemed to form part of the tramways undertaking of the Corporation :

Provided that in the accounts of the Corporation relative to their tramway undertaking the receipts and expenditure upon and in connection with trolley vehicles shall (as far as may be reasonably practicable) be distinguished from the receipts and expenditure upon or in connection with the remainder of such undertaking.

For protection of
Postmaster-General.

10.—(1) The powers and provisions contained in section 7 (Use of tramway posts by Postmaster-General) of the Leeds Corporation Tramways Order 1907 shall apply to any posts standards or brackets erected in connection with the trolley vehicles provided under this Act.

(2) The Corporation shall perform in respect of the trolley vehicles provided under this Act all the services in regard to the conveyance of mails which are prescribed by the Conveyance of

Mails Act 1893 in the case of a tramway as defined by that Act A.D. 1910.
and authorised as in that Act stated.

11. For the protection of the Great Northern Railway Com-
pany the Lancashire and Yorkshire Railway Company the London For protec-
and North Western Railway Company the Midland Railway tion of rail-
Company and the North Eastern Railway Company (each way com-
of whom is in this section referred to as "the company") the panies.
following provisions shall unless otherwise agreed between the
Corporation and the company be observed and have effect in
relation to the exercise of the powers of Part II. of this Act (that
is to say):—

- (1) In this section the word "apparatus" means and includes electric mains wires conductors posts tubes boxes apparatus and any similar appliances to be used for the purposes of the supply of motive power for any trolley vehicles and includes also any brackets wires and apparatus for the purposes of such apparatus:
- (2) All works by this Act authorised where the same shall be made upon across under or over any bridge or the approaches thereto or other work belonging to or maintainable by the company or will otherwise affect the same shall be executed so as not to injuriously affect the structure of any such bridge approaches or other work and according to plans sections and specifications to be previously submitted to and reasonably approved by the company or in case of difference between them and the Corporation by an arbitrator to be appointed as hereinafter provided. Provided that if the company do not within twenty-one days after such submission signify their disapproval of such plans sections and specifications they shall be deemed to have approved thereof. All such works shall be executed according to the plans sections and specifications so approved or determined by arbitration and under the superintendence (if the same be given) and to the reasonable satisfaction of the company. The Corporation shall so maintain and use the works and apparatus as not to injuriously affect any such bridge approaches or other work and in the event of any injury being occasioned to such bridge approaches or work by the construction maintenance user or removal of the

A.D. 1910.

works and apparatus upon across under or over the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing:

- (3) The Corporation shall not in any manner in the execution maintenance user or repair of any of their works or apparatus obstruct or interfere with the free uninterrupted and safe user of any railway or other work belonging to the company or any traffic thereon:
- (4) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may be occasioned to the company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the intended works or apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the intended works or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission:
- (5) If the company shall hereafter in the exercise of their existing powers require to widen lengthen strengthen reconstruct alter or repair any such bridge under or upon which the works and apparatus are laid or the approaches thereto or to widen or alter any railway thereunder or thereover and if it shall be necessary for such purpose that such works and apparatus be temporarily taken up diverted or removed and if the company accordingly give to the Corporation twenty-one days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such taking up diversion or removal then the working or user of such part of the apparatus shall be stopped or delayed or such part of the apparatus shall be taken up diverted or removed as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or

user shall be stopped or delayed for a longer period than may be absolutely necessary for effecting such purpose as aforesaid and such part of the apparatus shall be restored with all practicable dispatch and the company shall not be liable to pay compensation in respect of such stoppage delay or taking up diversion or removal: A.D. 1910.

- (6) The Corporation shall from time to time pay to the company any additional expense which the company may reasonably incur in effecting such widening lengthening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge approach or other work of the company by reason of the existence or user of the works or apparatus:
- (7) If and when the company shall require to re-construct alter repair or paint any bridge under which any electric wire of the Corporation has been placed the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be agreed between the Corporation and the engineer of the company or failing agreement as shall be determined by arbitration under this section unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer:
- (8) If having regard to the proposed position of any works of the Corporation by this Act authorised when considered in relation to the position of the works of the company at any point where any works or apparatus will be constructed over or under the railway or other works of the company it becomes necessary in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be repaid to the company by the Corporation:

A.D. 1910.

(9) The Corporation shall not for the purposes of this Act make attachments to any part of the said bridges without the consent in writing of the engineer of the company such attachments if allowed to be in all respects subject to the approval of the said engineer and to be temporarily removed at any time when required by him in connection with the maintenance and reconstruction or alteration of the said bridges :

(10) If any difference arises under this section between the Corporation and the company the same shall unless otherwise agreed be settled by arbitration under the provisions of the Arbitration Act 1889 by an engineer to be appointed by the President of the Institution of Civil Engineers at the request of either party.

Application
of existing
regulations
and byelaws.

12. All subsisting regulations and byelaws relating to the tramways of the Corporation made in pursuance of the provisions of the Tramways Act 1870 or of the Consolidation Act 1905 so far as the same are applicable shall with the necessary modifications apply to the trolley vehicles provided by the Corporation in pursuance of this Part of this Act.

PART III.

STREET IMPROVEMENT AND LANDS.

Power to
make street
improve-
ment.

13. Subject to the provisions of this Act the Corporation may make and maintain in the lines and according to the levels shown on the deposited plans and sections the street improvement hereinafter mentioned together with all necessary works and conveniences connected therewith or incidental thereto and may enter on take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for those purposes or for the purpose of providing space for the erection of buildings adjoining or near to such improvement.

The street improvement hereinbefore referred to and authorised by this Act will be situate in the city and is as follows:—

A widening of Wellington Street on the northerly side commencing at the south-westerly corner of the premises known as the Northern Hotel and terminating at the south-easterly corner of those premises.

14. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

A.D. 1910.
Period for compulsory purchase of lands.

15. The following provisions of the General Powers Act 1901 the Consolidation Act 1905 and the Act of 1908 shall extend and apply to and for the purposes of this Act as if those provisions were with all necessary modifications re-enacted in this Act (namely):—

Application of provisions of Acts of 1901 1905 and 1908.

The General Powers Act 1901—

Section 6 Deviation;

Section 11 Provisions as to compensation; and

Section 28 Costs of arbitration &c. in certain cases :

The Consolidation Act 1905—

Section 153 Power to retain sell &c. lands and to purchase lands by agreement :

The Act of 1908—

Section 7 Correction of errors &c. in deposited plans and book of reference;

Section 11 Persons under disability may grant easements &c.;

Section 41 Inquiries by Local Government Board; and

Section 42 Audit of accounts :

Provided that in the application of section 11 (Provisions as to compensation) of the General Powers Act 1901 that section shall be read and have effect as if the words “after the first day of January one thousand nine hundred and ten” were substituted for the words “between the first day of January and the thirty-first day of December one thousand nine hundred and one.”

PART IV.

FINANCIAL AND MISCELLANEOUS PROVISIONS.

16.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and

Power to borrow.

A.D. 1910. they shall pay off all money so borrowed within the respective periods mentioned in the third column of the said table (namely):—

1	2	3
Purpose.	Amount.	Period for Repayment.
(a) For the provision of trolley vehicles	£5,000	Ten years from the date or dates of borrowing.
(b) For the provision of electrical equipment and the construction of other works necessary for working trolley vehicles.	£9,000	Twenty years from the date or dates of borrowing.
(c) For the purchase of land for the street improvement authorised by this Act.	The sum requisite.	Sixty years from the date or dates of borrowing.
(d) For the construction of the said street improvement.	£300	Fifty years from the date or dates of borrowing.
(e) For paying the costs charges and expenses of this Act as hereinafter provided.	The sum requisite.	Five years from the passing of this Act.

(2) The Corporation may also with the consent of the Board of Trade borrow such further money as may be necessary for any of the purposes of Part II. of this Act and may with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act other than purposes of that Part.

Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Board with whose consent it is borrowed.

Money borrowed to be principal moneys within meaning of Acts of 1901 and 1905.

17. The moneys authorised to be borrowed under the provisions of this Act shall be and the same are hereby declared to be principal moneys within the meaning of the General Powers Act 1901 and the Consolidation Act 1905 and the provisions of those Acts with respect to principal moneys the borrowing or raising of money and the payment off of borrowed money shall subject to the provisions of this Act apply accordingly and such principal moneys shall be primarily chargeable as follows:—

The moneys borrowed for the purposes (a) (b) and (e) and the moneys borrowed with the sanction of the Board of Trade on the city fund;

The moneys borrowed for the purposes (c) and (d) and the moneys borrowed with the sanction of the Local Government Board on the consolidated fund.

18. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made shall be defrayed by the Corporation out of the city fund.

A.D. 1910.
Expenses of
execution of
Act.

19. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the city fund and city rate or out of moneys to be borrowed under this Act for that purpose.

Costs of
Act.

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